

IN THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

PRESENT: Justice Muhammad Hashim Khan Kakar
Justice Ishtiaq Ibrahim
Justice Ali Baqar Najafi

61/25

FIR
AD

Criminal Petition No. 974/2025

(Against the judgment/order dated 21.05.2025
passed by the Islamabad High Court,
in Crl. Misc No. 910-B/2025)

Khadim Hussain

Petitioner(s)

Versus

The State

Respondent(s)

For the Petitioner(s):

Mr. Shanzeb Khan, ASC

For the State:

Dr. Waseem Ahmed Qureshi,
Special Prosecutor a/w Mr. Raza, SI

Date of Hearing:

20.08.2025

JUDGMENT

Muhammad Hashim Khan Kakar, J. Through this petition, the petitioner, Khadim Hussain, has assailed the judgement dated 20.05.2025 passed by the learned Islamabad High Court, Islamabad, whereby his petition for post-arrest bail in case FIR No.69 of 2025, registered under various sections of the Control of Narcotics Substance Act, 1997 ("Act of 1997") at Police Station ANF, Islamabad, was dismissed.

2. The brief facts of the case, as stated in the impugned order, are reproduced below:

"2. Precisely, the allegations levelled in the FIR are that on 17.04.2025, at about 08:00 a.m., complainant Arslan Shakawat, Inspector along with ANF Officials, on the basis of spy information, intercepted Bedford truck bearing registration No. GLT-9667 near Sangjani Toll Plaza, Main G.T. Road, Islamabad, petitioner (Khadim Hussain) was sitting on the front seat while co-accused Mughal Khan was sitting on the driving seat were overpowered. Petitioner Khadim Hussain disclosed that the driver of the vehicle is his father. Both the accused persons disclosed the presence of narcotics in their possession. Mughal Khan (driver) co-accused himself handed over 14 packets of narcotics contraband from the secret cavity of the truck. On checking of these packets, one packet containing

heroin weighing 800 grams along with packing material, one packet containing ICE weighing 1000 grams along with packing material, five packets containing" opium, 1200/1200 grams each, total weighing 6 kilograms' opium along with packing material and 7 packets containing charas, each weighing 1200/1200 grams each total weighing 8.400 Kilograms along with packing material, were recovered, hence the instant FIR."

3. We have reviewed the available record and heard the learned counsel for the parties. The information indicates that the ANF authorities apprehended the petitioner and co-accused Mughal Khan (driver) while they were traveling in the aforementioned vehicle. The narcotics were concealed from all individuals as the aforementioned contraband items were recovered from the secret cavities of the vehicle in question. There is no evidence to suggest that the petitioner Khadim Hussain was aware of the presence of contraband items in the concealed cavities of the truck or had exclusive knowledge of the said cavities in order to be subject to the provisions of Article 122 of the Qanoon-e-Shahadat Order, 1984. The prosecution has merely established his presence in the truck at the time of its interception. Consequently, the petitioner's mere presence in the truck would not be sufficient to implicate him in the current case unless conspiracy or abetment of the offense is demonstrated and proven.

4. The learned Special Prosecutor representing the ANF authorities argued that the petitioner is the real son of Mughal Khan and was operating the vehicle at the time of its interception. Consequently, the petitioner is not eligible for bail on the basis of the principle of front seater or passenger. We disagree with the aforementioned contention due to the established principle of law that each individual is accountable for their own actions. The Holy Prophet Muhammad (P.B.U.H) preached this view in his last address stating that a father is not accountable for the actions of his son or daughter and sons and daughters are not responsible for the actions of their fathers.

5. The belief that individuals have the capacity to make choices and possess free will is the foundation of the principle that every person is accountable for their decisions and actions. This belief is accompanied by the obligation to embrace the consequences of those choices. The familial relationship does not transmit accountability, as an autonomous

individual makes their own decisions and his family members cannot be held accountable for those decisions unless they directly influenced or enabled the act. This concept ensures that the consequences of an act are only experienced by the individual who committed it, thereby fostering equity.

6. Individual responsibility is a fundamental concept in the majority of justice systems worldwide, and an individual is prosecuted based on his/her actions, not the actions of his/her relatives, in every legal system. A parent is not criminally liable for a crime committed by his adult son or daughter unless he was complicit, such as aiding or abetting the crime. In the same vein, a child is not legally accountable for the crime committed by his/her father. This principle guarantees individual accountability and prevents the unjust extend of liability based on familial ties. The concept of collective or family liability is generally rejected by the criminal law due to the fact that the principle of *actus reus* (the guilty act) and *mens rea* (the guilty mind) attaches liability to the individual who committed the act with intent.

7. In this view of the matter, in the light of the judgement rendered in the case of *Javed v State* (2017 SCMR 531), a case for further inquiry is made out. Accordingly, whilst setting aside the impugned order, this petition is converted into an appeal and the same is allowed. The petitioner is admitted to bail subject to furnishing bail bonds in the sum of Rs.1,000,000 (Rupees one million only) with one surety in the like amount to the satisfaction of the Trial Court.

ISLAMABAD
21.08.2025
(Farrukh)

Approved for Reporting